



File No: EXP202203825

RESOLUTION OF TERMINATION OF THE PROCEDURE BY VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On October 11, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against COM. PROP. ***COMMUNITY.1 (hereinafter, the claimed party), through the Agreement that is transcribed:

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File No: EXP202203825

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A., B.B.B., and C.C.C. (hereinafter, the claiming party/parties) filed a complaint with the Spanish Agency for Data Protection on March 24 and 25, 2022. The complaint is directed against those identified as COM. PROP. ***COMMUNITY.1 with NIF ***NIF.1 (hereinafter, the claimed party).

The reasons on which the complaint is based are succinctly as follows:

“(…) the claimed Community of Property was the subject of a previous file followed by this SPANISH AGENCY FOR DATA PROTECTION for the installation of video surveillance cameras in public roads, file E/00913/2016, by which the aforementioned Community was urged to remove the controversial cameras as they were oriented, without authorization for that, to the public road. In the present complaint, it is stated that, again, the aforementioned Community of Property has installed two cameras at the top of a pole, which are oriented towards two public roads, without any prior administrative authorization for that.”

Images of the location of the cameras are provided (Annex Doc. I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the claimed party on March 30, 2023, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified in a timely manner as evidenced by the acknowledgment of receipt in the file.

THIRD: This agency proceeded to examine the initial complaint presented within the framework of AT/01565/2022, forwarding it to the claimed party for their response.

Following the arguments and initial evidence provided by the claimed party, an Initial Resolution of Filing dated ***DATE.1 was issued, considering that the initial arguments justified the system under the current regulatory framework.

FOURTH: On September 5, 2022, a document qualified as was filed by the appellant against the resolution of this agency previously cited, in which it was initially agreed as follows: “Proceed to the FILING of the actions.”

FIFTH: On April 6, 2023, a document was received in this Agency from the claimed party—Community of Property ***COMMUNITY.1—in the following terms:

“The number of cameras in the surveillance system referred to in this information request is two, referring us to the photos already provided by the dissenting owner who reports their existence to the AEPD, from various angles and perspectives. It is not possible to provide photos of the monitor, mobile screen, or equivalent system (App or browser), because the community does not have such elements for viewing images.

Attached, as annex document number ONE, are photographs of the sign that warns of the existence of

cameras. A panoramic view, where it can be seen that it is placed on the same lamppost where the cameras are installed, and others with more zoom where the information it contains can be clearly seen.

Attached, as annex document number TWO, is a copy of the minutes of the Extraordinary General Meeting of owners dated October 19, 2018, in which the use of cameras for the security of the community space is approved, there being no community garage or community pool, as it is a community of plots where there are no such common spaces.”

SIXTH: On April 25, 2023, a RESOLUTION OF ADMISSION was issued, considering that the new evidence provided by the appellant was sufficient to substantiate a presumed irregularity regarding the cameras installed by the claimed party.

ADMIT the appeal for reinstatement filed by A.A.A. against the resolution of this Agency issued on July 20, 2022, by which the filing of the complaint regarding COM. PROP. ***COMMUNITY.1 was agreed, so that it may continue its processing.

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3/9

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Following the amendments made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, on the transposition of European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and the digitalization of notarial and registry actions; and by which Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials is amended, the procedural deadline established in Article 64.2 "in fine" is applied to the present procedure.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon the expiration of this period, it will lapse, and consequently, the proceedings will be archived.

II

In the present case, the complaint dated 05/09/22 is examined, which reports the following facts:

“existence of a permanent installation of two surveillance cameras located in the public road Avenida de ***AVENIDA.1” focusing on several public roads.

Article 5.1 c) GDPR provides as follows: Personal data shall be:

“adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

In any case, the cameras must be oriented towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring areas of transit without justified cause.

Moreover, with such devices, images of public space cannot be obtained, as this is the exclusive competence of the State Security Forces and Corps, as they are responsible for preventing criminal acts and ensuring security in the aforementioned public road, in accordance with the provisions of Organic Law 4/1997, of August 4, and its implementing regulations.

It is worth remembering that even in the case of a “dummy” camera, it must be preferably oriented towards private space, as it is considered that such devices can affect the privacy of third parties, who may feel intimidated by the belief that they are subject to permanent recording.

Individuals cannot install devices for obtaining images of public space and/or the transit of third parties, outside the cases permitted by the regulations.

The purpose of such devices must be the security of the property and its residents, avoiding the infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the individual in such a way that they do not affect the area of third parties who may feel intimidated by them, as they affect their area of free transit.

III

In accordance with the evidence available at this moment of the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the party complained against has a video surveillance camera system that may be misoriented.

The known facts could constitute an infringement, attributable to the party complained against, classified under Article 5.1 c) GDPR.

Article 72, paragraph 1, letter a) establishes a limitation period of three years for “infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

“a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

IV

Article 83.5 GDPR provides as follows: “Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% as a maximum.

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5/9

maximum of the total annual global turnover of the previous financial year, opting for the highest amount:

a) The basic principles for processing including the conditions for consent in accordance with Articles 5, 6, 7, and 9 (...).

In justifying the sanction, it is taken into account that the evidence provided confirms the presence of devices with a presumed poor orientation towards public space affecting an indeterminate number of people, which indicates initial negligence in the described conduct, therefore a sanction of €1000 is agreed upon for the infringement of Article 5, a sanction situated at the lower end of the scale for this type of behavior without prejudice to the instruction of the procedure.

The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 will be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

- the intentionality or negligence of the infringement (art. 83.2 b) GDPR).

It is also taken into account that the same Community of property owners had already been the subject of a previous complaint regarding a matter of cameras in the context of E/00913/2016, therefore it is aware of the requirements imposed by the current regulations for the installation of such devices.

V

If the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each

supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is noted that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate such conduct to open a further sanctioning administrative procedure.

The party being claimed must provide a photograph with the date and time of the cameras subject to the complaint, with a screenshot of what is captured by them, as well as provide the necessary documentation to justify their orientation towards the area they capture, without prejudice to any legal arguments they deem necessary to present (impact area, proportionality of the measure, etc.).

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

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6/9

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the entity COM. PROP.

***COMMUNITY.1, with NIF ***NIF.1, for the alleged infringement of Article 5.1 c) GDPR, classified under Article 83.5 GDPR.

SECOND: TO APPOINT D.D.D. as the instructor and E.E.E. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the actions prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be €1000, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to COM. PROP. ***COMMUNITY.1, with NIF ***NIF.1, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number indicated in the heading of this document.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for submitting allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €800, resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at €800, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for submitting allegations to the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €600.

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7/9

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

In the event that it opts to proceed with the voluntary payment of either of the amounts indicated above €800 or €600, it must make it effective by depositing it into account no. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: CAIXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Additionally, it must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LO-PDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal is available against this act.

935-290523

Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On October 25, 2023, the respondent has proceeded to pay the sanction in the amount of €600, utilizing both reductions provided in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted for submitting allegations to the initiation of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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8/9

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

- “1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with respect to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infraction.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

The percentage of reduction provided for in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202203825, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to COM. PROP. ***COMMUNITY.1.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as prescribed by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, at C/ Jorge Juan, 6, www.aepd.es, 28001 – Madrid, sedeagpd.gob.es

9/9

within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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